



File No.: RR/00699/2022

RESOLUTION OF THE RECOURSE FOR RECONSIDERATION

Examined the recourse for reconsideration filed by the MUNICIPAL GROUP VOX CITY COUNCIL OF MADRID (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated October 19, 2022, and based on the following

FACTS

FIRST: On October 19, 2022, a resolution was issued by the Director of the Spanish Agency for Data Protection in file RR/00699/2022, by virtue of which a warning sanction was imposed on the MUNICIPAL GROUP VOX CITY COUNCIL OF MADRID for an infringement of Article 6.1.a) of the GDPR, classified under Article 83.5.a) of the GDPR. This resolution, which was notified to the appellant on October 21, 2022, was issued prior to the processing of the corresponding sanctioning procedure, in accordance with the provisions of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD), and subsidiarily under Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), regarding the processing of sanctioning procedures.

SECOND: As proven facts of the aforementioned sanctioning procedure, PS/00418/2021, the following was recorded:

FIRST. On April 23, 2021, the complainant filed a complaint with the AEPD stating that the respondent visited the facilities of IES Ramiro de Maeztu supporting grassroots sports alongside the Board of the Estudiantes Basketball Club; during this visit, a video was made that was disseminated on social media, Twitter, and Instagram, in which minors appeared without consent for the processing of their data.

SECOND. It is recorded that on March 4, 2021, a video lasting 1:07 minutes appeared on social media Instagram and Twitter, showing images of minors during their training.

THIRD. The complainant sent an email dated March 5, 2021, to the Estudiantes Club expressing his disagreement with the visit to the respondent's facilities and his surprise at the video he learned about via WhatsApp, in which moments of one of his children's training were visible, finding the use of such images for political purposes intolerable.

FOURTH. On March 5, 2021, the Estudiantes Basketball Club responded by sending a letter stating the following: "...in its capacity as a reference training club, it has received various institutional visits from different municipal political groups of the City Council of Madrid in recent months, with the aim of discussing with the mentioned political forces the sports projects we are currently implementing and wish to develop in the future. In this context, on March 3, 2021, we received at the Movistar Academy Magariños the visit of members of the municipal group of VOX, taking images of the meeting held and of the sports facilities where we carry out our activities. As various teams from our youth academy were training at the pavilion at that time, they took images, among other elements of the pavilion, of some of the players who were exercising at that moment. The Club will convey to the Communication Department of the municipal group of VOX at the City Council of Madrid the request to edit the video again so that images of the players who were filmed are not broadcasted."

FIFTH. In a letter dated March 5, 2021, the Estudiantes Club addressed the respondent stating the following: "Dear ..., From the Estudiantes Basketball Club, we are receiving some complaints from parents of underage players for having been recorded while training during the visit made by the municipal group of VOX at the City Council of Madrid on March 3, as the parents did not authorize the use and reproduction of those images. For this reason, and since the parents did not authorize the aforementioned recording, we request that you edit the video of the visit removing the images of the underage individuals that appear." In this same line, a letter was sent on March 11, 2021, again requesting the removal of the images of the minors in light of the complaints from the guardians and parents, and that if the repeated requests were not attended to, they would be forced to act jointly in the appropriate actions.

SIXTH. In a letter dated June 21, 2021, Vox stated regarding the video that: "The graphic information is

about a public event or occurrence, and the image of the minors appears merely as an accessory and in a proportional manner; likewise, it is a place open to the public and has relevant political, cultural, and sports interest. In no case is there a detriment to the honor or reputation of the minors, nor is the publication contrary to their interests. No one has approached this party exercising any rights.”

SEVENTH. On July 21, 2021, the Estudiantes Club responded to the request of the AEPD stating that: “(...) Consequently, CLUB ESTUDIANTES has not intervened in the facts subject to the complaint, as at no time was the recording of images of the Club's students allowed, but only the entry of members of the VOX parliamentary group as part of an institutional visit to a facility owned by the City Council of Madrid. Therefore, the personal data of the complainant (his image) has not been subject to processing by CLUB ESTUDIANTES without his consent nor...

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there has been a transfer of said personal data in favor of the aforementioned political party for its own purposes.

(...)”.

THIRD: The appellant submitted on November 7, 2022, to this Spanish Agency for the Protection of Data, a request for reconsideration, fundamentally based on the allegations made throughout the procedure and that the promotion of sports by municipal groups is a mission clearly of public interest, as expressly established by Article 25 of the LRBRL as a competence of the municipalities, and that the argument of the AEPD is inexplicable when considering that the dissemination of a video is not necessary for the fulfillment of that public interest.

LEGAL GROUNDS

I

The Director of the Spanish Agency for the Protection of Data is competent to resolve the present appeal, in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

In relation to the statements made by the appellant, reiterating the allegations already presented throughout the sanctioning procedure, it should be noted that all of them have already been analyzed and dismissed in Legal Grounds II to VI of the contested Resolution, as transcribed below:

II

The reported facts materialize in the publication of a video made in the facilities of IES Ramiro de Maeztu containing images of minors, which could imply a violation of the regulations on the protection of personal data.

It should be noted that the physical image of a person, according to Article 4.1 of the GDPR, is a personal data and its protection, therefore, is subject to said Regulation. In Article 4.2 of the GDPR, the concept of "processing" of personal data is defined.

It is, therefore, pertinent to analyze whether the processing of personal data (image of individuals) carried out through the filming of a video and its upload to social networks is in accordance with the provisions of the GDPR.

Article 6, Lawfulness of processing, of the GDPR in its paragraph 1, establishes that:

1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) the processing is necessary for the performance of a contract to which the data subject is a party or for the implementation at the request of the data subject of pre-contractual measures;
- c) the processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) the processing is necessary to protect vital interests of the data subject or of another natural person;
- e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) the processing is necessary for the purposes of the legitimate interests pursued by the controller or

by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provisions of letter f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions.”

On the other hand, Article 4 of the GDPR, Definitions, in its paragraphs 1, 2, and 11, states that:

“1) ‘personal data’: any information relating to an identified or identifiable natural person (‘the data subject’); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;

“2) ‘processing’: any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction;

“11) ‘consent of the data subject’: any freely given, specific, informed, and unambiguous indication of the data subject's wishes by which they, by a statement or by a clear affirmative action, signify agreement to the processing of personal data relating to them;

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a statement or a clear affirmative action, the processing of personal data concerning you.”

III

1. The processing of data requires the existence of a legal basis that legitimizes it, such as the consent of the data subject for the processing of personal data for one or more specific purposes.

In accordance with Article 6.1 of the GDPR, in addition to consent, there are other possible bases that legitimize the processing of data without the need for authorization from the data subject, in particular, when it is necessary for the execution of a contract in which the data subject is a party or for the application, at their request, of pre-contractual measures, or when it is necessary for the satisfaction of legitimate interests pursued by the data controller or by a third party, provided that such interests do not override the interests or fundamental rights and freedoms of the data subject requiring the protection of such data. The processing is also considered lawful when it is necessary for compliance with a legal obligation applicable to the data controller, to protect vital interests of the data subject or another natural person, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller.

In this case, the respondent is accused of violating Article 6.1(a) of the GDPR as the unlawfulness of the processing carried out by the respondent is evidenced by the inclusion in the recording of images of minors and the dissemination on social media platforms Twitter and Instagram of the video made at the facilities of IES Ramiro de Maeztu, without evidence that the representatives of those minors had granted their consent.

As stated in the facts, the claimant, father of one of the minors, expressed his surprise at the recorded video of which he became aware via WhatsApp, in which moments of the training of one of his children are reproduced.

The club where the events took place addressed the respondent indicating that “For this reason, and as the parents did not authorize the aforementioned recording, we request that you edit the video of the visit by removing the images of the minors that appear” and that “at no time was the recording of images of the students of the Club allowed, but only the entry of members of the VOX parliamentary group as part of an institutional visit to a venue owned by the City Council of Madrid.”

Therefore, it is considered that the processing carried out violates the principle of lawfulness enshrined in Article 6, and it is not acceptable, as the respondent states, that “The graphic information is about a public event or occurrence and the image of the minors appears merely as accessory and in a proportional manner.”

2. The respondent has alleged that the publication and dissemination on social media of the video has sufficient legitimacy under paragraph (e) of Article 6.1 of the GDPR, which states “(e) the processing is necessary for the performance of a task carried out in the public interest.”

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in the public interest or in the exercise of public powers conferred on the data controller.”

This section justifies and legitimizes the processing based on activities carried out by public sector entities, including those within Local Administration, when such entities exercise public powers or a public interest mission, which does not necessarily have to be based on a specific legal obligation, but rather on the realization of the public interest purposes they pursue, in this case, the Municipalities. Regarding the processing of personal data carried out under letter e) of Article 6.1 of the GDPR, the following clarifications are necessary:

First, as provided in paragraphs 2 and 3 of Article 6 of the GDPR, the legal norms that enable such processing may establish specific provisions in relation to them:

“2. Member States may maintain or introduce more specific provisions in order to adapt the application of the rules of this Regulation regarding processing in compliance with paragraph 1, letters c) and e), setting more precise specific requirements for processing and other measures that ensure lawful and fair processing, including other specific processing situations in accordance with Chapter IX.

3. The basis for the processing indicated in paragraph 1, letters c) and e), must be established by:

- a) Union law, or
- b) The law of the Member States applicable to the data controller.

The purpose of the processing must be determined in that legal basis or, regarding the processing referred to in paragraph 1, letter e), must be necessary for the fulfillment of a mission carried out in the public interest or in the exercise of public powers conferred on the data controller. This legal basis may contain specific provisions to adapt the application of the rules of this Regulation, among others: the general conditions governing the lawfulness of processing by the controller; the types of data subject to processing; the affected data subjects; the entities to which personal data may be communicated and the purposes of such communication; the limitation of purpose; the retention periods for the data, as well as the operations and procedures of processing, including measures to ensure lawful and fair processing, such as those related to other specific processing situations in accordance with Chapter IX. Union law or the law of the Member States will fulfill a public interest objective and will be proportional to the legitimate aim pursued.”

The respondent states that the promotion of sports by the municipal groups of the Madrid City Council is a clearly public interest mission, prompted by the sports institution itself with its invitation, and that Article 25 of Law 7/1985, of April 2, regulating the Bases of the Local Regime (LRBRL), expressly establishes, as a competence of municipalities, the promotion of sports.

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However, such a statement cannot be shared; it is true that the LRBRL indicates as one of the municipal competencies the promotion of sports in section I) of article 25:

“I) Promotion of sports and sports facilities and leisure activities.”

In the same way, Law 15/1994, of December 28, on Sports of the Community of Madrid, in Chapter II, titled on local entities, establishes in article 23, Functions and competencies, that:

“1. In accordance with this Law and with what is established in the State legislation on Local Regime, the Town Halls will exercise in their respective terms the following competencies and functions:
a) To generally promote physical activity and sports in their territorial scope, encouraging physical activities of a formative and recreational nature, especially among schoolchildren.
(...)”

It should be noted that the processing of data will be covered by letter e) of article 6.1 if the applicable law has attributed a competence to the Administration by a norm with the rank of law, article 8.2 of the LOPDGDD, and it will not be covered otherwise.

Article 6.1.e) of the GDPR only considers the processing of personal data lawful based on this provision if it is necessary for the fulfillment of a mission carried out in the public interest or in the exercise of public powers conferred to the data controller. Therefore, if a certain processing is not “necessary” for the fulfillment of the mission carried out in the public interest or in the exercise of the public powers conferred by the legal system, such processing would lack sufficient legal basis as provided in section e).

In this case, if we consider that the public interest invoked by the respondent is determined by the generic mandate established in the previous norms directed at local entities for the promotion of physical and sports activities, of sports facilities, as well as leisure activities, etc., the processing carried out through the recording of images of minors and their dissemination on social networks Twitter and Instagram through the video made in the facilities of IES Ramiro de Maeztu is not necessary for the fulfillment of that mission of public interest, being estimated that it violates article 6.1 of the GDPR and, furthermore, in the invoked norm, the obligation of such processing is not imposed, that mission of public interest is not determined, and public power is not conferred to carry out the processing.

3. In relation to the consent of minors, article 7, Consent of minors, of the LOPDGDD establishes that:
“1. The processing of personal data of a minor may only be based on their consent when they are over fourteen years old.

Exceptions are made in cases where the law requires the presence of the holders of parental authority or guardianship for the celebration of the act or legal business in which the consent for the processing is obtained.”

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2. The processing of data of minors under fourteen years of age, based on consent, shall only be lawful if it is obtained from the holder of parental authority or guardianship, to the extent determined by the holders of parental authority or guardianship.

And Article 92, Protection of minors' data on the Internet, of the LOPDGDD states that:

“Educational centers and any natural or legal persons that carry out activities in which minors participate shall guarantee the protection of the best interests of the minor and their fundamental rights, especially the right to the protection of personal data, in the publication or dissemination of their personal data through information society services.

When such publication or dissemination is to take place through social network services or equivalent services, they must have the consent of the minor or their legal representatives, in accordance with the provisions of Article 7 of this organic law.”

From the aforementioned regulations, it can be inferred that to publish or disseminate the image of minors, the consent of the parents or guardians is required if the minor is under 14 years of age and, in any case, if the minor is over 14, the consent of the minor is required.

The GDPR considers the image as a personal data and is therefore subject to protection. To process any personal data, explicit consent from the data subject is required; thus, to process (publish) recordings or videos in which the image of a person appears, we need their consent or that of their representative or guardian.

4. It should be noted that the image is considered personal data according to the definition of personal

data provided by Article 4 of the GDPR and, as such, any processing of images of identified or identifiable persons must comply with the requirements, obligations, and principles established in the regulations on the protection of personal data, GDPR, and LOPDGDD.

In this specific case, the person being recorded has the right to consent to the collection and use of their image, and it is also the responsibility of the data controller to ensure that the person from whom consent is requested actually gives it.

In this regard, the image is a personal data, and the person responsible for recording that image needs to obtain the consent of the individual, complying with the regulations on the protection of personal data.

For these purposes, the capture and recording of the image and/or voice on a physical medium are considered processing of personal data when

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allowing for the determination, directly or indirectly, of the identity of its holder, and in this case, such processing will only be legitimate if it is based on one of the legal grounds enumerated in Article 6.1 of the GDPR.

The Constitutional Court, in relation to the data protected by the fundamental right to the protection of personal data, has stated that "From all that has been said, it follows that the content of the fundamental right to the protection of data consists of a power of disposition and control over personal data that empowers the individual to decide which of those data to provide to a third party, whether the State or a private individual, or which this third party may collect, and that also allows the individual to know who possesses that personal data and for what purpose, being able to oppose that possession or use. These powers of disposition and control over personal data, which constitute part of the content of the fundamental right to the protection of data, are legally specified in the authority to consent to the collection, obtaining, and access to personal data, its subsequent storage and processing, as well as its possible use or uses by a third party, whether the State or a private individual. And this right to consent to the knowledge and processing, whether computerized or not, of personal data requires as indispensable complements, on the one hand, the authority to know at all times who disposes of that personal data and to what use it is being subjected, and, on the other hand, the power to oppose that possession and uses.

In short, characteristic elements of the constitutional definition of the fundamental right to the protection of personal data are the rights of the affected individual to consent to the collection and use of their personal data and to be informed about them. And it is essential to make that content effective the recognition of the right to be informed of who possesses their personal data and for what purpose, and the right to oppose that possession and use by requiring the relevant party to cease the possession and use of the data. That is to say, demanding from the data controller that they inform them of what data they possess about the individual, accessing their relevant records and entries, and what destination they have had, which also extends to possible assignees; and, where appropriate, requiring them to rectify or cancel it."

The object of the fundamental right to the protection of data is not limited only to the intimate data of the person but to any type of personal data, whether intimate or not, whose knowledge or use by third parties may affect their rights, whether fundamental or not, because its object is not only individual intimacy, which would already be protected by Article 18.1 of the Constitution, but personal data. That is to say, the Constitutional Court extends this fundamental right to public personal data, which, by being public, cannot escape the power of disposition of the interested or affected party, not being limited to those relating to the private or intimate life of the person, but rather the data that is protected and safeguarded are all those that identify or allow the identification of the person, which can shape their ideological, racial, sexual, economic profile, etc.

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IV

The infringement attributed to the defendant is classified in Article 83.5 a) of the GDPR, which considers that the infringement of "the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9" is sanctionable, according to paragraph 5 of the aforementioned Article 83 of the cited Regulation, "with administrative fines of up to €20,000,000 or, in the case of a company, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount."

The LOPDGDD in its Article 71, Infringements, states that: "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

And in its Article 72, it considers for the purposes of prescription that they are: "Infringements considered very serious:

1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and will prescribe in three years:

(...)

b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679 being met.

(...)

V

However, the LOPDGDD in its Article 77, Applicable regime for certain categories of controllers or processors, establishes the following:

"1. The regime established in this article shall apply to the processing for which the following are responsible or act as processors:

a) The constitutional bodies or those with constitutional relevance and the institutions of the autonomous communities analogous to them.

b) The judicial bodies.

c) The General Administration of the State, the Administrations of the autonomous communities, and the entities that make up the Local Administration.

d) The public bodies and entities of public law linked to or dependent on the Public Administrations.

e) The independent administrative authorities.

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f) The Bank of Spain.

g) Public law corporations when the purposes of the processing relate to the exercise of public law powers.

h) Public sector foundations.

i) Public Universities.

j) Consortiums.

k) Parliamentary groups of the General Courts and the Autonomous Legislative Assemblies, as well as political groups of Local Corporations.

2. When the controllers or processors listed in section 1 commit any of the violations referred to in articles 72 to 74 of this organic law, the competent data protection authority shall issue a resolution sanctioning them with a warning. The resolution shall also establish the measures that should be adopted to cease the conduct or to correct the effects of the violation that has been committed.

The resolution shall be notified to the controller or processor of the data, to the body to which they hierarchically depend, if applicable, and to the affected parties who have the status of interested

parties, if applicable.

3. Without prejudice to what is established in the previous section, the data protection authority shall also propose the initiation of disciplinary proceedings when there are sufficient indications for it. In this case, the procedure and the sanctions to be applied shall be those established in the legislation on disciplinary or sanctioning regimes that is applicable.

Furthermore, when the violations are attributable to authorities and executives, and it is proven that there are technical reports or recommendations for processing that have not been duly addressed, the resolution imposing the sanction shall include a reprimand naming the responsible officer and shall order the publication in the Official State Gazette or the corresponding autonomous gazette.

4. The resolutions related to the measures and actions referred to in the previous sections must be communicated to the data protection authority.

5. The actions carried out and the resolutions issued under this article shall be communicated to the Ombudsman or, where applicable, to the analogous institutions of the autonomous communities.

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6. When the competent authority is the Spanish Agency for Data Protection, it shall publish on its website, with due separation, the resolutions referred to the entities in section 1 of this article, with express indication of the identity of the controller or processor who committed the violation.

When the competence corresponds to an autonomous data protection authority, the publicity of these resolutions shall be subject to what its specific regulations provide.

In accordance with the available evidence, the conduct of the respondent constitutes a violation of the provisions of article 6.1.a) of the GDPR, as it lacks the consent of the parents or guardians of the minors appearing in the video disseminated through the social networks Twitter and Instagram.

The LOPDGDD provides in its article 77 for the sanction of a warning in relation to personal data processing that does not comply with its provisions. In this regard, article 83.7 of the GDPR states that “Without prejudice to the corrective powers of the supervisory authorities under article 58, paragraph 2, each Member State may establish rules on whether and to what extent administrative fines may be imposed on authorities and public bodies established in that Member State.”

Furthermore, it is provided that the resolution issued may establish measures that should be adopted to cease the conduct, correct the effects of the violation that has been committed, and ensure compliance with the requirements set forth in article 6.1.a) of the GDPR, as well as the provision of evidence of compliance with the requirements.

It is necessary to point out that reiterating the conduct manifested in the complaint, which is the cause of this procedure, as well as failing to subsequently inform this AEPD of the measures adopted to prevent incidents like the one indicated, could lead to the exercise of possible actions against the data controller to ensure that effective measures are applied that guarantee and do not compromise the legality of the processing of personal data and the privacy of individuals.

VI

The corrective powers that the GDPR attributes to the AEPD as the supervisory authority are related in its article 58.2, paragraphs a) to j).

Article 83.5 of the GDPR establishes an administrative fine (article 58.2.i) for the behaviors typified therein, without prejudice to the fact that, as provided in article 83.2 of the GDPR, administrative fines may be imposed together with other corrective measures provided in article 58.2 of the GDPR.

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Having confirmed the infringement, it is appropriate to impose on the responsible party the adoption of adequate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions established in the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may “d) order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame.”

In this case, the respondent is required to, within one month from the notification of this resolution:

- Provide evidence of the adoption of measures to prevent incidents like the one that led to the sanctioning procedure: the capture and dissemination of images of minors in a video without the consent of their parents, and that the processing carried out complies with the provisions of this Regulation, and to remove the image of all minors appearing in the video published on social media.

It is warned that failure to comply with the requirement may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which could lead to the initiation of further administrative sanctioning procedures.

IV

On the other hand, in their appeal, the appellant has alleged:

- Firstly, that a detailed analysis of the video would have concluded that the minors were not identifiable and that the logic of the procedure that considers the rights to data protection to be harmed is lacking.

However, such an allegation cannot be accepted because it is precisely the analysis and viewing of the aforementioned recording that confirms that the minors were recorded and that their identification is possible as a result of the publication on social media, a recording that was also not authorized by the educational center: “Consequently, CLUB ESTUDIANTES did not intervene in the facts subject to the complaint, as at no time was the recording of images of the Club's students permitted, but only the entry of members of the parliamentary group VOX as part of an institutional visit to a venue owned by the City Council of Madrid,” and that the parents had not consented either, as in addition to the complainant, the club itself indicated that: “From the Club Estudiantes de Baloncesto, we are receiving some complaints from parents of underage players for having been recorded while training during the visit made by the municipal group of VOX at the City Hall of Madrid on March 3, as the parents had not authorized the use and reproduction of those images.”

- The appellant also alleges that Article 25 of the LRBRL expressly establishes, as a competence of municipalities, the promotion of sports and that a municipal group attending a meeting to promote sports, and publicizing the meeting itself, is part of its competencies, and that the argument of the AEPD is inexplicable.

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It is true that Article 25 of the LRBRL states as a competence of the municipalities, in its section I) the "Promotion of sports and sports facilities and leisure activities," and in our country, it is a right that derives from the social state as set forth in Article 43.3 of the Constitution, which orders public authorities to promote physical education, sports, and leisure; the fundamental norm itself assigns the promotion of sports to the Autonomous Communities (CCAA), and if we delve into the sectoral laws approved by the CCAA, we find the competencies of municipalities in this area.

However, the fact that the aforementioned municipal group responds to the call made to promote sports and publicizes the meeting itself is within the logic and, as the appellant points out, is part of its competencies.

Nevertheless, what is questioned in the contested resolution is not the competence of municipal groups in this matter, which is clear, but rather that the treatment carried out is not necessary for the

fulfillment of that mission, being considered to violate Article 6.1 of the GDPR for lacking legitimacy for this, such as the recording of a video including images of minors and its publication on social networks Instagram and Twitter, carried out in the facilities of IES Ramiro de Maeztu.

V

Consequently, in the present appeal for reconsideration, the appellant has not provided new facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution.

Having seen the cited provisions and others of general application,

The Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by the MUNICIPAL GROUP VOX MADRID CITY COUNCIL against the resolution of this Spanish Agency for Data Protection issued on 19/10/2022, in the file RR/00699/2022.

SECOND: TO NOTIFY this resolution to the MUNICIPAL GROUP VOX MADRID CITY COUNCIL.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal.

If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

Mar España Martí

Director of the Spanish Agency for Data Protection

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